

T.1768/17, albeit in the context of the submission of requests). This duty is reflected in the EPC provisions governing the handling of late submissions: Art. 114(2) EPC as a general provision (which is, according to the preparatory documents, aimed at preventing the negligent conduct of proceedings, T.122/84); R. 137 EPC for the grant procedure; and R. 76(2)(c) EPC and R. 80 EPC for the opposition procedure; R. 116(1) EPC concerning the final date for making written submissions in preparation for oral proceedings (for appeal proceedings, see the revised Rules of Procedure of the Boards of Appeal (RPBA 2020), OJ 2021, A35; see chapter V.A.4. "New submissions on appeal – case law on RPBA 2020" and in particular chapter V.A.4.1.2. "Primary object of appeal proceedings and the "convergent approach" to amendments made to party's case").

The boards have stressed that opponents are required to submit all their objections during the opposition period, setting each out in full (T.117/86, OJ 1989, 401). Under R. 76(2)(c) EPC, the notice of opposition must contain a statement of the extent to which the European patent is opposed and of the grounds on which the opposition is based, as well as an indication of the facts and evidence presented in support of these grounds. In T.2165/10, the board held that the appellant (opponent) should have included an indication of the alleged public prior use submitted later in its notice of opposition and indicated/filed all evidence in its possession at that time. It did not accept the appellant's argument that the documents in its possession at the time of filing the opposition were considered by the appellant not to be enough to constitute a complete chain of evidence.

Notwithstanding the above, according to the case law of the boards of appeal, not only the facts and the evidence submitted by the opponent within the nine-month period to file an opposition and those possibly submitted by the patent proprietor within the four months (see Guidelines D-IV, 5.2, March 2022 version) given for replying to the grounds of oppositions are "filed in due time".

In T.1364/12, the board found that documents not admitted by the opposition division had been submitted by the appellant (patent proprietor) in due time in response to the communication under R. 79(1) EPC and so should have formed the basis for the opposition proceedings. It had not been open to the opposition division to consider whether or not to admit them at its discretion on the basis of prima facie relevance, and doing so therefore amounted to an erroneous exercise of that discretion.

The filing of facts and evidence within subsequent periods of time may also be in "due time" when it occurs in accordance with the principle of procedural economy and, therefore, when the filing party has observed a **fair degree of procedural vigilance** (T.502/98 referring to T.201/92, T.238/92, T.532/95 and T.389/95; cited in T.568/02; see also e.g. T.574/02).

Accordingly, new facts, documents and/or evidence are regarded as having been filed on time if their filing was occasioned by an argument or a point raised by another party so that, under the circumstances of the case, they could not have been filed earlier. According to T.502/98 this may occur, for instance, when certain facts or evidence became relevant only after a party has submitted an unforeseeable amendment of the claims or a new experimental test report or has challenged for the first time the existence of common

general knowledge. In such cases, a diligent party normally has no obligation to retrieve and file such facts and evidence before such action of the other party (cited e.g. in T 986/08). See also T 623/93, where the board held that, where amended claims were introduced in the opposition proceedings there could be no objection to the opponent's submitting new citations and new arguments against the new claims (with reference to G 9/91, OJ 1993, 408, point 19 of the Reasons).

Therefore, the filing of new facts and evidence in direct response to new submissions by the other party (T 389/95, T 320/08, T 1698/08, T 1949/09), or at the earliest time possible in the proceedings (T 468/99, T 2551/16), or promptly after their relevance has become apparent (T 201/92, T 502/98, T 568/02, T 574/02, T 986/08, T 998/17), has been considered to be "in due time" (see also T 156/84, OJ 1988, 372, but also e.g. T 1734/08 and T 733/11, which considered submissions filed outside the period specified by Art. 99(1) EPC to be late-filed, without considering the observance of procedural vigilance).

In T 117/02 the board stated that in the case of a request to introduce late-filed submissions (here: a new ground of opposition and new arguments and evidence) the **right to be heard** should be granted before those late-filed submissions were rejected.

An opponent must be given an opportunity to respond in an appropriate way when the subject of the proceedings has changed, for example due to amendment. Depending on the nature of the amendment this may involve the filing of further documents (T 366/11).

4.3.2 Rule 116(1) EPC – not an invitation to file new submissions

In T 628/14 the board recalled that, according to the established case law, R. 116(1) EPC should not be construed as an invitation to file new evidence or other material departing from the legal and factual framework of issues and grounds pleaded as established with the notice of opposition (citing T 39/93, OJ 1997, 134). Also, the fact that the opposition division expressed a preliminary opinion in its communication did not necessarily justify the filing of new evidence, unless this was in **reaction to new aspects** raised in the communication.

The board in T 66/14 observed that, according to case law, evidence first submitted by an opponent after expiry of the nine-month period under Art. 99(1) EPC was generally to be regarded as late for the purposes of Art. 114(2) EPC, and that R. 116(1), fourth sentence, EPC was not to be understood to mean that a fresh period during which new evidence could be filed without being treated as late was triggered on issue of the summons to oral proceedings (T 841/08). However, there may be cases in which special circumstances justify an opponent's not filing evidence until after the nine-month period under Art. 99(1) EPC and in which, therefore, that evidence is **not** to be treated as late for the purposes of Art. 114(2) EPC (T 532/95). In particular, new evidence submitted after the date referred to in R. 116(1) EPC is to be admitted if the **subject of the proceedings has changed**.

4.3.3 Fair response – examples

In T 1551/14, during the written proceedings that followed initial oral proceedings before the opposition division, at which witnesses had been heard, the patent proprietor had filed a new auxiliary request limiting the subject-matter of the independent claims by a new feature. Having been summoned to a second round of oral proceedings, the opponent had filed, within the period fixed under R. 116 EPC, a statutory declaration made by one of the previously heard witnesses and proposed that that witness be heard again. For the board, this declaration, which dealt with matters that had become relevant only once the new auxiliary request had been filed, was a direct and timely reaction of the opponent (appellant) to that request, and therefore could not be treated as filed late. The board did not share the appellant-proprietor's misgivings that the declaration conflicted with the case made so far. That submissions filed as a legitimate reaction to an amendment to the counter-party's case contained contradictions was in any event not a proper basis for refusing to admit those submissions from the outset.

In T 2734/16 the board held that a new line of attack on inventive step pursued in response to and using the documents submitted by the patent proprietor with its reply to the opposition should not be considered late filed per se. For reasons of "equality of arms", the new attack could be admitted into the opposition proceedings even if the documents ultimately proved no more relevant than other documents.

In T 1711/16 the opponent had filed further evidence within the final date set in accordance with R. 116(1) EPC in order to overcome concerns expressed by the opposition division for the first time in its communication sent out in preparation for the oral proceedings. The board pointed out that the prima facie relevance of these documents, which in the proprietor's opinion was lacking, was irrelevant to the issue of admittance. The decisive point was whether these documents and the submissions made in respect of them dealt with the concerns of the opposition division and were timely submitted, i.e. whether they represented a **fair answer** to the concerns raised by the opposition division. Accordingly, the board overturned the opposition division's discretionary decision not to admit the evidence at issue.

4.4. Documents cited in the patent specification or search report

A document considered during the examination procedure is **not automatically** scrutinised in opposition or opposition appeal proceedings, even if it is quoted and acknowledged in the contested European patent (T 155/87, T 198/88, OJ 1991, 254; T 484/89, T 652/99, T 2053/13). Generally, it has to be relied upon by a party to be considered by the opposition division.

According to T 291/89 this also applied to a document cited in the search report (see also T 387/89, OJ 1992, 583, summarised below). In T 111/04 the board agreed with the case law and considered that this applied also to evidence filed during the grant proceedings.

In T 536/88 (OJ 1992, 638) the board pointed out, however, that the document cited and acknowledged in the description of the contested patent itself as the **closest prior art** and

on the basis of which the technical problem in the description was formulated remains an exception. Such a document also forms part of the opposition or opposition appeal proceedings even if it is not expressly cited within the opposition period (confirmed e.g. in T 541/98, T 652/99, T 454/02, T 86/03, T 257/14, T 1123/14; distinguished e.g. in T 1421/12 and T 2541/17; for the opposite view, see e.g. T 234/90, T 300/90 and T 501/94, OJ 1997, 193).

In T 140/00 although document (7) had been cited in the specification of the patent in suit, it had merely been acknowledged as **conventional background art**; it was not considered therein as essential or as the closest prior art and starting point of the claimed invention. Therefore, that document did not automatically form part of the appeal proceedings and, thus, was late-filed evidence subject to a discretionary decision of the board.

In the board's view in T 387/89 (OJ 1992, 583), neither an opposition division nor a board of appeal had any duty to reconsider the relevance of documents cited in the European search report if such documents had not been relied upon by the opponents to support their grounds of opposition. Under Art. 114(1) EPC 1973, however, an opposition division or appeal board could introduce new documents into the opposition proceedings if it had good reason to suppose that the documents could affect the outcome of the decision (T 420/93, T 530/00).

4.5. Criteria for exercise of discretion

4.5.1 Different approaches

It is at the opposition division's discretion whether to admit late-filed documents (Art. 114(2) EPC; see chapter IV.C.4.1. above). According to settled case law, it must first examine them as to their relevance. Late-filed facts and evidence and supporting arguments should only exceptionally be admitted into the proceedings if, *prima facie*, there are reasons to suspect that such late-filed documents prejudice the maintenance of the European patent in suit (see, in particular, T 1002/92, OJ 1995, 605; see also T 1643/11, T 2443/12; and in this chapter IV.C.4.5.3 "Prima facie relevance").

As to whether and, if so, to what extent opposition divisions can or must consider other criteria too, with the result that even *prima facie* relevant documents may not be admitted in certain cases, the boards have taken various different approaches.

According to one of those approaches, the principle of examination by the EPO of its own motion (Art. 114(1) EPC) takes precedence over the possibility of disregarding facts or evidence not submitted in due time. This follows from the EPO's duty towards the public **not to grant or maintain patents which it is convinced are legally invalid** (T 156/84, OJ 1988, 372; T 2542/10; T 1272/12). Accordingly, the main criterion for deciding on the admissibility of late-filed documents and evidence is their **relevance**, i.e. whether they are decisive (relevant) for the outcome of the case (see T 258/84, OJ 1987, 119; T 892/98; T 605/99, T 572/14). Some decisions assess the relevance in relation to other documents already in the case (e.g. T 932/99, T 482/01, T 927/04; see however T 1652/08 and

T.66/14 rejecting this definition). If the document is relevant it must be admitted into the case and taken into account (T.164/89, T.1016/93).

In addition, in landmark decision T.1002/92 (OJ 1995, 605) the board held that the principles set out by the Enlarged Board in G.9/91 and G.10/91 (OJ 1993, 408 and 420) with regard to the admissibility of fresh grounds of opposition (see chapter IV.C.3. above) are also generally applicable to late-filed new facts and evidence in support of grounds of opposition already presented in the notice of opposition. Accordingly, in proceedings before the opposition divisions, late-filed facts, evidence and related arguments which go beyond the "indication of the facts, evidence and arguments" presented in the notice of opposition pursuant to R.55(c) EPC 1973 should only exceptionally be admitted into the proceedings if, prima facie, there are clear reasons to suspect that such late-filed material would prejudice the maintenance of the European patent in suit. The board saw the consideration of relevance as the principal factor governing the exceptional admissibility of late filed new facts, evidence and related arguments in proceedings before the opposition division. For the more restrictive and stringent criteria in proceedings before the boards of appeal, see chapter V.A.4. and, in particular, chapters V.A.4.4.6d) and e), V.A.4.5.8i) and V.A.4.5.11b) below.

Many decisions have affirmed T.1002/92 (for late submissions in opposition proceedings see e.g. T.481/99, T.481/00, T.1643/11, T.1883/12, T.2438/13, T.710/15). In T.2049/16 the board reiterated that the need to avoid the maintenance of invalid European patents justified, in first-instance proceedings, the admittance of documents that, in the opposition division's view, were prima facie relevant.

However, in many earlier decisions, too, the relevance of late-filed documents was no longer viewed as being the only decisive criterion for admitting them. Other criteria, such as how late the documents were, why they had been submitted late and whether their submission constituted a procedural abuse or whether admitting the late-filed documents could lead to an excessive delay in the proceedings, were also held to be decisive (see T.534/89, OJ 1994, 464; T.17/91, T.951/91, OJ 1995, 202; T.1019/92, T.481/99, T.1182/01, T.927/04, T.1029/05, T.1485/08, T.2542/10, T.1272/12, T.1883/12, T.1271/13).

For decisions on the exercise of discretion by opposition divisions, see in this chapter IV.C.4.5.3 to 4.5.5; for criteria for considering late-filed facts and evidence in appeal proceedings, see chapter V.A.4. and, in particular, chapters V.A.4.1.2, V.A.4.4.6, V.A.4.5.7, V.A.4.5.8 and V.A.4.5.11.

4.5.2 Review of discretionary decisions by the boards

The discretionary power conferred by Art.114 EPC necessarily implies that the EPO department of first instance must have a certain degree of freedom in exercising its power. A board of appeal should only overrule the way in which a department of first instance has exercised its discretion when deciding on a particular case if it concludes that it has done so according to the wrong principles, or without taking into account the right principles, or in an unreasonable way, and has thus exceeded the proper limits of its discretion